PANACEA OR PANDORA'S BOX?

THE SUPREME COURT'S RECENT VERDICT ALLOWING SUBCLASSIFICATION WITHIN SCs/ STs HAS SET OFF A DEBATE ON WHETHER RESERVATIONS LEAD TO TRUE SOCIAL EQUITY OR GET REDUCED TO A TOOL IN THE HANDS OF POLITICAL PARTIES SEEKING TO PROFIT FROM VOTE BANK POLITICS

By KAUSHIK DEKA

ON August 1, the Supreme Court delivered a landmark judgment redefining the framework of affirmative action. In a 6:1 majority ruling, a seven-judge bench led by Chief Justice D.Y. Chandrachud allowed states to create subclassifications within the Scheduled Castes (SC) and Scheduled Tribes (ST). The aim is to ensure a more equitable distribution of reservation benefits among the most backward communities within these categories. Acknowledging that SC/STs are not homogeneous, the apex court recognised the varying degrees of social and educational backwardness among these communities. It has in effect now allowed states to further demarcate reservations for specific castes within the 15 per cent reservation earmarked for all SCs and 7.5 per cent for all STs. This ruling overturns the Supreme Court's 2004 decision in *E.V. Chinnaiah vs State of Andhra Pradesh*, which held that the SC/ ST list was a homogeneous group that couldn't be subdivided. The 2024 judgment supports the argument that reservation benefits have not equally reached all castes and that more vulnerable groups need a fixed share within the reservation framework.

While there is enough research to support this argument, the fear is that the political class may exploit the well-intentioned ruling to cultivate vote banks. The verdict has already received mixed reactions from political parties, irrespective of their affiliation to either the ruling National Democratic Alliance (NDA) or the Opposition Indian National Developmental Inclusive Alliance (INDIA).

Even though the Union government supported the judgment in court, the ruling BJP and its principal rival, the Congress, have not given definitive reactions. However, Congress chief ministers from Karnataka and Telangana—Siddaramaiah and A. Revanth Reddy respectively—have welcomed the verdict. It has also found support from Congress allies such as the DMK and CPI. The Rashtriya Janata Dal (RJD) has opposed it. The Yadavs, the largest caste group in Bihar at 14.27 per cent of the population, fear that subclassification within SCs and STs could raise demands for more subclassification within the Other Backward Classes (OBC). Subclassification of the OBCs is already in place in Bihar. Yadavs are a dominant caste group among the OBCs in several north Indian states, including Bihar and Uttar Pradesh.

The BJP's allies, likewise, are also divided over the judgment. While the Janata Dal (United) and Telugu Desam Party (TDP) have supported it, the Lok Janshakti Party (Ramvilas), led by Chirag Paswan, has announced plans to seek a judicial review of the ruling. The Paswans, who according to Bihar's socio-economic survey last year form 5.31 per cent of the state's population, are the second-largest caste group in the state. They fear that the subclassification will reduce their share of reservations. In 2007, when the then chief minister and JD(U) chief Nitish Kumar had coined the term "Mahadalit" for smaller Dalit castes and launched special welfare schemes for their development, the Paswans had been excluded from